

फार्म नं. 1

प्रथम सूचना प्रतिवेदन (धारा 154 द. प्रक्रिया संहिता के अन्तर्गत)
FIRST INFORMATION REPORT (Under Sec. 154 Cr.P.C.)

वि.पु.स्था.सी.-II
S.P.E.C.-II

बुक नं. **1246**
Book No.

क्रम सं. **02**
Serial No.

1. जिला : थाना : वर्ष : प्र.सू.प्र.क्र. दिनांक :
District PS: CBI: Year 2024 FIR No. RC 28(A)/2024 Date 17.12.2024
Visakhapatnam Visakhapatnam

2. (1) विधान : PC Act धाराएं : Sec.7 & 8 of PC Act, 1988 [as amended by Act 16 of 2018 w.e.f. 26.07.2018].
Act Sections

(2) विधान : धाराएं :
Act BNS Sections 61(2) BNS.

(3) विधान : - धाराएं : -
Act Sections

(4) अन्य विधान एवं धाराएं : -
Other Acts & Sections

Criminal conspiracy, offence relating to Public Servant being bribed and offence relating to bribing of a public servant.

3. (क) प्रतीत अपराध :
(a) Suspected Offence

(ख) दिन : दिनांक समय
(b) Day Date Time
05.11.2024 to 17.12.2024

(ग) थाने पर सूचना प्राप्त होने का दिनांक
(c) Information received at PS Date 17.12.2024

कायमी अपराध : 04
Entry No.

दिनांक 17.12.2024 समय 11:10 hrs.
Date Time

4. सूचना का प्रकार : लिखित/मौखिक Source information
Type of Information Written/Oral

5. घटना का स्थान Tirupati
Place of Occurrence

(क) थाने से दिशा व दूरी : South around 750 kms approximately
(a) Direction & Distance from PS

बीट नं. / Beat No.

(ख) पता:

(b) Address

Office of the Commissioner of Central Tax,
Tirupati GST Commissionerate, Tirupati

(ग) घटनास्थल अन्य थाना क्षेत्राधिकार में है तो थाना -

Nil

(c) In case, outside the limit of this Police Station, then

पुलिस थाना का नाम NA
Name of PS

जिला NA
District

6. अभियोगी / सूचनाकर्ता :

Complainant / Informant

Source information

(क) नाम

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(a) Name

(ख) पिता / पति का नाम

(b) Father's / Husband's Name

(ग) जन्म तिथि

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(c) Date of Birth

(घ) राष्ट्रियता :

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(d) Nationality

(ङ) पासपोर्ट नं.

जारी दिनांक

जारी होने का स्थान

(e) Passport No

Date of Issue

Place of Issue

(च) व्यवसाय

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(f) Profession

(छ) पता -

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(g) Address

7. ज्ञात / संदेही / अज्ञात / आरोपी का पूर्ण विवरण :

Details of known / suspected / unknown accused with full particulars

(यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)

(Attached separate sheet, if necessary)

- (1) 1) Shri Arisetty Jagannadha Prasad @ AJ Prasad, Assistant Commissioner, O/o Commissioner of Central Tax, Tirupati GST Commissionerate.
- (2) 2) Shri Modavathi Jagan Nayak, Superintendent, O/o Commissioner of Central Tax, Tirupati GST Commissionerate
- (3) 3) Sri Mada Balaji, Inspector, O/o the Commissioner of Central Tax, Tirupati GST Commissionerate.
- 4) Shri Ganeshram Mahender Choudhary, representative of M/s Absolute Shine, Thalambedu, Chittoor.
- 5) Unknown Public Servants and private persons.

8. अभियोगी / सूचनाकर्ता द्वारा सूचना दिए जाने में विलंब का कारण : **No delay**
Reasons for delay in reporting by the complainant / informant
9. अपहृत / सम्बद्ध सम्पत्ति का पूर्ण विवरण : (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें) **Nil**
Particulars of properties Stolen (Attach separate sheet, if necessary)
10. अपहृत / सम्बद्ध सम्पत्ति का कुल मूल्य : **Nil**
Total value of property stolen
11. मर्ग / अकाल मृत्यु सूचना क्रमांक : **Nil**
Inquest Report / U.D. case No. if any
12. प्रथम सूचना विवरण :- (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
First Information contents (Attach separate sheet, if required)

CBI, ACB, Visakhapatnam received a reliable information that Shri Arisetty Jagannadha Prasad @ A.J.Prasad, Assistant Commissioner; Shri Modavathi Jagan Nayak, Superintendent; and Shri Mada Balaji, Inspector of office of the Commissioner of Central Tax, Tirupati GST Commissionerate, Tirupati are, in connivance with each other, inspecting the premises of various establishments, firms, companies, etc., and collecting various documents. Subsequently, they are calling the owners of the firms to attend CGST Office, Tirupati and demanding illegal gratification in order to show undue favour to them.

Information further revealed that on 05.11.2024, Shri Mada Balaji, Inspector visited the premises of M/s Absolute Shine, which was functioning from M/s Ganapathi Granites, Thalambedu, Chittoor, along with other officials, and collected documents viz., stock position, sales, invoices, etc. Shri Mada Balaji, Inspector informed to Shri A.J.Prasad, Assistant Commissioner and Shri Modavathu Jagan Nayak, Superintendent about the visit to M/s Absolute Shine and collection of documents. Shri Mada Balaji, Inspector asked Shri Ganeshram Mahender Choudhary, representative of M/s Absolute Shine, Chittoor to attend CGST Office, Tirupati on 06.11.2024 along with IT Returns, Bank statements, etc. Further, Shri Mada Balaji, Inspector contacted Shri Chandra Babu, representative of M/s Ganapathi Granites, enquired as to how M/s Absolute Shine is working from the same premises and asked him to attend CGST Office, Tirupati along with documents and Shri Ganeshram Mahender Choudhary. Information further revealed that on 06.11.2024, Shri Ganeshram Mahender Choudhary attended

CGST Office, Tirupati, met Shri Mada Balaji, Inspector & others and took time up to 21.11.2024.

Information further revealed that on 22.11.2024, when Shri Mada Balaji, Inspector asked, Shri Ganeshram Mahender Choudhary informed that he would attend CGST Office on 25.11.2024. Shri Mada Balaji, Inspector asked Shri Ganeshram Mahender Choudhary to attend CGST Office along with Shri Chandra Babu, representative of M/s Ganapathi Granites with documents. When Shri Ganeshram Mahender Choudhary informed Shri Chandra Babu of M/s Ganapathi Granites about the instructions of Shri Mada Balaji, Inspector, then Shri Chandra Babu informed Shri Ganeshram Mahender Choudhary that he is out of station, he would attend CGST Office in first week of December and asked him to settle the matter. Subsequently, Shri Ganeshram Mahender Choudhary attended CGST Office, Tirupati on 25.11.2024 and met Shri Mada Balaji, Inspector & others. Shri Ganeshram Mahender Choudhary informed to one Shri Sankar that CGST officials, Tirupati are demanding Rs.10,00,000/-, else they would levy penalty.

Information further revealed that on 26.11.2024, when Shri Mada Balaji, Inspector enquired with Shri Ganeshram Mahender Choudhary as to why he did not contact him on 25.11.2024 night, Shri Ganeshram Mahender Choudhary informed that he was not able to contact Shri Mada Balaji. Further, Shri Ganeshram Mahender Choudhary informed Shri Chandra Babu that Shri Mada Balaji & others are demanding illegal gratification of Rs.40,00,000/-, he negotiated with them, they agreed for Rs.10,00,000/- and they would not conduct any enquiry on his firm. Further, Shri Ganeshram Mahender Choudhary informed that the amount has to be distributed among all the officials and he was asked to pay in two installments of Rs.5,00,000/- each, but on 26.11.2024, Shri Mada Balaji, Inspector informed him that the amount of Rs.10,00,000/- needs to be paid in one installment on 08.12.2024.

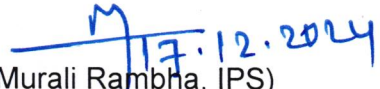
Information further revealed that on 10.12.2024, Shri Chandra Babu informed Shri Ramu Bethampudi that he enquired with Shri Ganeshram Mahender Choudhary about his visit to CGST, Tirupati and Shri Ganeshram Mahender Choudhary informed that he took time till Friday i.e., 13.12.2024 from Shri Mada Balaji, Inspector to pay the amount.

Information further revealed that on 13.12.2024, Shri Ganeshram Mahender Choudhary informed Shri Mada Balaji, Inspector that he has started to Chittoor to pay the amount. Then Shri Mada Balaji, Inspector informed Shri Ganeshram Mahender Choudhary that he was going out on urgent verification and asked Shri Ganeshram Mahender Choudhary to come on Monday (16.12.2024).

Information further revealed that on 15.12.2024, Shri Mada Balaji, Inspector informed Shri Ganeshram Mahender Choudhary that he is at Hyderabad and asked to arrange the money at Hyderabad, for which Shri Ganeshram Mahender

Choudhary informed that he is arranging money at Chittoor and it is not possible to arrange the same at Hyderabad. Then, Shri Mada Balaji, Inspector asked Shri Ganeshram Mahender Choudhary to give money on Tuesday morning i.e., on 17.12.2024 at Tirupati positively, for which Shri Ganeshram Mahender Choudhary agreed.

The aforesaid acts prima facie disclose the commission of cognizable offences punishable U/Sec 61(2) BNS, 2023 and Sec.7 & 8 of PC Act, 1988 [as amended by Act 16 of 2018 w.e.f. 26.07.2018] and hence the instant case vide RC.28(A)/2024 of CBI, ACB, Visakhapatnam is registered against (i) Shri Arisetty Jagannadha Prasad, Assistant Commissioner, O/o the Commissioner of Central Tax, Tirupati GST Commissionerate, Tirupati; (ii) Shri Modavathu Jagan Nayak, Superintendent, O/o the Commissioner of Central Tax, Tirupati GST Commissionerate, Tirupati; (iii) Shri Mada Balaji, Inspector, O/o the Commissioner of Central Tax, Tirupati GST Commissionerate, Tirupati; (iv) Shri Ganeshram Mahender Choudhary of M/s Absolute Shine, Chittoor; and (v) unknown Public Servants & Private Persons. The investigation of the case is entrusted to Shri N.Raghavendra Kumar, Dy. Supdt. of Police, CBI, ACB, Visakhapatnam.


(Murali Rambha, IPS)
Superintendent of Police,
CBI, ACB, Visakhapatnam.
Superintendent of Police & HoB
C.B.I., A.C.B., Visakhapatnam.

13. कार्यवाही जो की गई : चूँकि उपरोक्त विवरण क्रमांक 2 में उल्लिखित धारा(ओं) के अंतर्गत घटने वाले अपराध को उद्घाटित करता है

Action taken : Since the above information reveals commission of offence(s) u/s as mentioned at Item No. 2

- (1) मामला पंजीकृत किया गया एवं जांच प्रारंभ हुआ अथवा
Registered the case and took up the investigation or

- (2) निर्देशित (जांच अधिकारी का नाम) रैंक नं. जांच हेतु लिया गया
Directed (Name of IO) Rank No. Took up for investigation
Shri N.Raghavendra Kumar, Dy. Supdt. of Police,
CBI, ACB, Visakhapatnam.

- (3) कारण से जांच के नामजूर अथवा
Refused investigation due to **NIL** or **NIL**

- (4) पुलिस थाना को स्थानांतरित किया गया जिला क्षेत्राधिकार के आधार पर
Transferred to PS **NIL** District on point of jurisdiction **NIL**

अभियोगी / सूचनाकर्ता को प्र.सू. पत्र पढ़ाकर / पढ़कर सुनाया गया, जिन्होंने सही-सही अभिलिखित होना स्वीकार किया। इसकी एक प्रति अभियोगी / सूचनाकर्ता को निःशुल्क प्रदान की गई।

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant/informant, free of cost.

पढ़ कर सुनाया व सही स्वीकृत होना पाया।
R.O.A.C.

14. अभियोगी / सूचनाकर्ता के हस्ताक्षर
Signature/Thumb impression
of the complainant/informant

थाना अधिकारी के हस्ताक्षर
Signature of Officer in-charge
Police Station

नाम / Name (Murali Rambha, IPS)
Superintendent of Police,
(पद) / Rank CBI, ACB, Visakhapatnam.
Superintendent of Police & HoB
C.B.I., A.C.B., Visakhapatnam.

15. न्यायालय को भेजने का दिनांक एवं समय
Date and time of despatch to the court

17.12.2024

(Murali Rambha, IPS)
Superintendent of Police,
CBI, ACB, Visakhapatnam.

(प्रभारी अधिकारी के हस्ताक्षर तारीख सहित)
Signature of recording Officer with date
Superintendent of Police & HoB
C.B.I., A.C.B., Visakhapatnam.

प्रथम सूचना रिपोर्ट का आइटम 7 लगाएं

Attachment to item 7 of First Information Report

संदिग्ध व्यक्ति की शारीरिक विशेषताएं, विरूपता तथा अन्य विवरण :-

Physical features, deformities and other details of the suspect/accused : (If known / seen)

क्र.सं. Sl. No.	*लिंग (Sex)	*जन्म की तारीख / वर्ष Date/Year of Birth	*शारीरिक गठन (Built)	*ऊंचाई से. मी. में (Height) (in Cms)	*वर्ण (Complexion)	*पहचान चिह्न (Identification Mark/s)
1	2	3	4	5	6	7

विरूपता/विलक्षणता (Deformities/ peculiarities)	दांत (Teeth)	बाल (Hair)	आँख (Eye)	आदतें (Habits)	पहनावा (Dress Habit/s)
8	9	10	11	12	13

भाषा / बोली (Language/Dialect)	स्थान / Place of				
	जले का निशान (Burn Mark)	श्वेत कुष्ठ (Leucoderma)	तिल (Mole)	जखम चिह्न (Scar)	गोदना (Tattoo)
14	15	16	17	18	19

अभियोगी / सूचनाकर्ता, द्वारा संदिग्ध / अभियुक्त के बारे में एक या अधिक विवरण दिए जाने पर ही इसमें प्रविष्टि की जाए।

These fields will be entered only if complainant/informant gives any one or more particulars about the suspect/accused.